

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, MAY 20, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Nancy L. Zanolini, et al. vs. Robert A. Morgan, III, et al.
Case No. CU24-08708**

Motions for Attorney Withdrawal

TENTATIVE RULING

Parties and counsel to appear. Due to the court's calendar, parties and counsel may be asked to wait to permit court to engage in in camera proceeding with Plaintiff and Plaintiff's counsel.

**MITCHELL v. VACAVILLE MGR LLC, ET AL.
Case No. CU26-00205**

Petition to Compel Arbitration

TENTATIVE RULING

The petition to compel arbitration by Defendants Vacaville Manager LLC dba Vacaville Memory Care ("VMC"), Pacifica Regency Palms LLC dba Vacaville Memory Care ("PACIFICA"), Oasis Outsourcing III, LLC ("OASIS"), Carl Knepler ("KNEPLER") and Deepak Israni ("ISRANI") (collectively "Defendants") is GRANTED.

Defendants have established that Plaintiff executed an arbitration agreement on May 7, 2025 that requires Plaintiff to arbitrate "[a]ny and all claims or controversies arising out of Employee's ... employment, or cessation of employment". (Decl. of Mancebo, Exh.

A.) This agreement was presented as onboarding paperwork that was completed in person. (*Id.* at ¶ 3.) Plaintiff does not deny that the agreement was not presented as part of the onboarding paperwork, does not deny signing the agreement, and does not present any evidence that the signature on the document was forged or is inauthentic. (Decl. of Mitchell, ¶¶ 6, 11-13.) All Plaintiff avers is that she does not recall having signed the document. (*Id.* at ¶ 13.) Evidence that a plaintiff does not recall signing an agreement, despite admitting that the plaintiff was given a stack of documents to sign and in the absence of evidence that the signature on the agreement was forged or inauthentic, “does not create a factual dispute as to whether plaintiff...signed the agreement.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756.)

Consequently, the burden shifted to Plaintiff to prove the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Gamboa v. N.E. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 165; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Although the parties agreed to submit questions of enforceability to the arbitrator (Decl. of Mancebo, Exh. A, ¶ 9), this delegation clause is not “clear and unmistakable.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 239.) The delegation clause is contradicted by a severability provision in the event “for any reason, any provision of this Agreement is determined by an arbitrator **or a court of competent jurisdiction** to be illegal or otherwise invalid”. (Decl. of Mancebo, Exh. A, ¶ 15, emphasis added.) Because the agreement “acknowledges the possibility that enforceability issues will be decided, not by the arbitrator, but rather by the court”, enforceability may be decided by the court. (*Peleg v. Neiman Marcus Group, Inc.* (2012) 204 Cal.App.4th 1425, 1442, 1445.) Other provisions of the agreement also provide for court review. (See Decl. of Mancebo, Exh. A., ¶ 8.)

Plaintiff has not met her burden. While there is procedural unconscionability because the agreement is a contract of adhesion imposed on an employee by an employer as a condition of employment with no ability to opt out or negotiate terms (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 115), the only claim of substantive unconscionability made by Plaintiff is that the arbitration agreement requires the parties to bear their own attorneys’ fees and costs irrespective of statutory fee shifting requirements. But, the arbitration agreement does no such thing. It explicitly states that each party, “**except as may otherwise be required by law**, shall be responsible for their own attorneys’ fees and costs incurred in presenting their case to the Arbitrator.” (Decl. of Mancebo, Exh. A, ¶ 12, emphasis added.)

Plaintiff’s evidentiary objection 1 is overruled. It is unnecessary for the court to reach any other evidentiary objections to resolve this petition.

The action shall be stayed until completion of arbitration. (Code Civ. Proc. § 1281.4.) The case management conference is vacated. An arbitration review hearing is scheduled for May 29, 2027 at 8:30 a.m. Updated case management conference statements shall be filed 15 calendar days prior to the hearing.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002